Sole / Single Source Request Justification

(For Noncompetitive Purchases over $2,500)

WARNING: Per Florida Statutes 838.22(2) – It is unlawful for a public servant or a public contractor who has contracted with a governmental entity to assist in a competitive procurement to knowingly and intentionally obtain a benefit for any person or to cause unlawful harm to another by circumventing a competitive solicitation process required by law or rule through the use of a sole-source contract for commodities or services.

To: Budget & Finance / Purchasing Division:

Your approval is requested to initiate a sole/single source procurement action:

Requestor Name & Title: Christopher Chastain
Lieutenant

Requestor Dept./Division: Police

Phone Number: 954-693-8385 Requisition Number _____

NTSS-2019-03

Recommended Sole/Single Source procurement action with:

Company Name: SaferWatch, LLC

Contact Name: Geno Roefaro

Address: 1 Town Center Road, Suite 500

City, State, Zip Boca Raton, FL 33486

E-mail: Billing@saferwatchapp.com

Telephone: 844-44WATCH

Is the recommended company the manufacturer? ☒ Yes ☐ No

Does the manufacturer sell the item(s) through distributors? ☐ Yes ☒ No

If yes, please have manufacturer provide a list of all authorized distributors.

Describe the full scope of work contemplated including installation if required; items should include brand, model and part number if applicable.

The police department is in need of software to allow citizens to report incidents or tips, via video, photo audio or text in realtime and directly into a law enforcement communications center.

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_____

Identify the date you need item delivered or work performed.

Type of Sole/Single Source (Check One) ☑ Sole Source ☐ Single Source

☑	One-Time: applies to a single requisition and purchase order for the current fiscal year
☐	On-Going: Applies to multiple purchases to be made for one year from date Sole/Single Soure approved. Estimated Annual Expenditures for one year: $_____

Is there a contract related to these services? ☑ Yes ☐ No If, yes has legal reviewed it? ☐ Yes ☐ No

SOLE/SINGLE SOURCE RATIONALE

Explain why the recommended company is the only company who can perform the requirement. Address the following: Are there any other companies who can do this job? What condition (e.g. technological superiority, or performance risks, etc.) exists so that the recommended company has a significant advantage over any other company who can do this job?

It is important to sufficiently address the major reason for conducting a noncompetitive procurement, avoiding peripheral issues which detract from the main reason and reduce the credibility of the justification. The rational must be clear and convincing, avoiding generalities and unsupported conclusions. Use one or more of the following as applicable.

Use additional sheets if necessary.

A specific contractor is the only source of the required item because (check all that apply):

The required items are **proprietary to the Contractor**

A specific item is needed:

- ☐ to be compatible or interchangeable with existing hardware,
- ☐ as spare or replacement hardware,
- ☐ for the repair or modification of existing hardware, or
- ☐ for technical evaluation or test.
- ☑ Vendor is the original equipment manufacturer; there are no regional distributors. Verification from manufacturer is attached

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☑ This is the only equipment that meets the specialized needs of the department and performs the intended function. Detailed justification is attached.

☐ Vendor is the sole distributor that is restricted by the manufacturer to our territory. Verification from manufacturer is attached.

It is not possible to obtain competition (i.e., only one source is capable of supplying the items or meeting the requirements). *In a brief explanation, provide supporting evidence for the conclusion; other sources considered should be identified and why they are not able to meet the requirements.*

The SaferWatch Platform is the only commercially available law enforcement and community notification and communication tool which has the patent pending combination of services including: the ability for an end user to report incidents or tips, via video, photo, audio or text and/or Emergency Live Video (which transmits real-time video and audio streams) which may include a user's physical GPS location, nearest address, profile (including profile photo), contact information, emergency contacts and self-provided medical information directly into a law enforcement communications center or a RTCC (real-time crime center).

☐ There is a **substantial technical risk** in contracting with any other contractor, thereby making that an unacceptable course of action (e.g., where only one contractor has been successful to date in implementing a difficult manufacturing process). *In a brief explanation, provide supporting evidence of other contractor's with relevant capabilities and emphasize their inability to overcome the substantial technical risk.*

☐ For support services effort, there is no reasonable expectation that a meaningful cost or other improvement could be made in the incumbent contractor's performance (e.g., the

chances of another firm winning a competition are clearly remote). *Please provide a brief explanation.*

ACKNOWLEDGEMENT

This section must be completed:

I am aware of the Town's requirements for competitive bidding for purchases over $2,500.00 and the criteria for justification for Single Source/Sole. I have gathered the required technical information and have made a concerted effort to review comparable/equal equipment (e.g., market research). I have attached the pertinent documentation showing what market research was conducted to preclude other items from consideration.

Christopher Chastain Digitally signed by Christopher Chastain Date: 2018.07.03 13:56:24 -04'00'

Requestor Signature _____ Date _____

Department Director Signature _____ Date _____

To be complete by Purchasing staff:

☑ The Town has advertised the above request on the Town's website in accordance with State of Florida Statute 287.057 and no challenges or protests were received. *

Buyer: Jenna Albers Date: 12/13/18

Procurement Manager Signature: _____ Date: 12/13/18

If approved by Town Council: Resolution Number: _____

*All requests for Sole/Single Source will be advertised on the Town's website for a minimum of 7 days prior to approval from the Procurement Manager.

SAFERWATCH

Sole Source Justification

November 26, 2018

Davie Police Department
Attn: Purchasing Department
1230 S Nob Hill Rd,
Davie, FL 33324

Dear Purchasing Department,

To the best of our knowledge, the SaferWatch Platform is the only commercially available law enforcement and community notification and communication tool which has the patent pending combination of services including: the ability for an end user to report incidents or tips, via video, photo, audio or text and/or Emergency Live Video (which transmits real-time video and audio streams) which may include a user's physical GPS location, nearest address, profile (including profile photo), contact information, emergency contacts and self-provided medical information directly into a law enforcement communications center or a RTCC (real-time crime center).

In addition to users being able to submit real-time information, the SaferWatch Platform offers the ability for law enforcement and organizations to send out unified, mass notifications to targeted geographic areas including predefined geofenced locations and locations that encompass a specific geo-radius from a defined address. Users of the App receive a unique notification tone and vibration upon receipt of an alert which helps to notify users of a real-time incident which is occurring or provide updates on an incident that has occurred. Once users have received the alert, they are able to view critical instructions provided by the law enforcement entity and offers users the ability to comment privately and directly to the law enforcement entity; possibly providing law enforcement with real-time intelligence during an active situation.

Sincerely,

Geno Roefaro

Geno Roefaro
President
SaferWatch